

Privacy Policy

and its affiliates value our relationship with our business partners, clients, and any party who may be interested in GEXAGI business services and solutions for any reason, and we are committed to protecting your information by handling it responsibly and safeguarding it using appropriate technical, administrative and physical security measures. This statement outlines the types of personal information collected on our website, how this data is used and safeguarded, and how users may exercise their rights with respect to personal information.

If you reside in India, you contract with GEXAGI Software Private Limited, Jagannath Prasad, MJ Woods, B1, Unit#201, Odisha, 751003. If you reside outside of India, you contract with one of the GEXAGI companies and subsidiaries.

If you reside in USA, you contract with GEXAGI LLC, 3 Germay drive, Unit#4, Suit#1588, Wilmington, Delaware, 19804.

This Privacy Statement applies to GEXAGI.com, GEXAGI-branded apps, GEXAGI company pages, communications and services ("Services"), including off-site Services, such as our email services, customer care and support services, the "Contact us"; "Apply with GEXAGI" and "Share on" plugins on our digital properties.

Scope

This Privacy Statement applies to GEXAGI and its affiliates, subsidiaries, and contracted service providers who will collect, use, and maintain your personal data in connection with the services you have requested.

How do we collect personal data?

- **Directly:** We obtain personal data directly from individuals in a variety of ways, including obtaining personal data from individuals who provide us their business card, complete our online forms, subscribe to our newsletters and preference center, register for webinars, attend meetings or events we host, visit our offices or apply for open roles. We may also obtain personal data directly when, for example, we are establishing a business relationship, performing professional services through a contract, or through our hosted software applications.
- **Indirectly:** We obtain personal data indirectly about individuals from a variety of sources, including recruitment services and our clients. We may attach personal data to our customer relationship management records to better understand and serve our business clients, subscribers and individuals, satisfy a legal obligation, or pursue our legitimate interests.

- **Public sources** -- Personal data may be obtained from public registers (such as Companies House), news articles, sanctions lists, and Internet searches.
- **Social and professional networking sites** -- If you register or login to our websites using social media (e.g., LinkedIn, Google, or Twitter) to authenticate your identity and connect your social media login information with us, we will collect information or content needed for the registration or login that you permitted your social media provider to share with us. That information may include your name and email address and, depending on your privacy settings, additional details about you, so please review the privacy controls on the applicable service to determine how much information you want to share with us.
- **Business clients** -- Our business clients may engage us to perform professional services that involve sharing personal data they control as part of that engagement. For example, we will review payroll data as part of an audit, and we often need to use personal data to provide global mobility and pension services. Our services may also include processing personal data under our clients' control on our hosted software applications, which may be governed by different privacy terms and policies.
- **Recruitment services** -- We may obtain personal data about candidates from an employment agency, and other parties including former employers, and credit reference agencies.

What Personal Data will GEXAGI collect?

The personal data we collect may also include 'sensitive' or 'special categories' of personal data, such as details about:

- name, gender, age, and date of birth;
- contact information, such as an address, email, and mobile phone number;
- country of residence;
- lifestyle and social circumstances (for example, your hobbies);
- family circumstances (for example, your marital status and dependents);
- employment and education details (for example, the organization you work for, your job title, and your education details);
- financial and tax-related information (for example, your income, investments, and tax residency);
- postings or messages on any blogs, forums, platforms, wikis, or social media applications and services that we provide (including with third parties);
- IP address, browser type, and language, your access times;
- information on any complaints you make;
- details of how you use our products and services;
- CCTV footage and other information we collect when you access our premises; and
- details of how you would like to interact with us, and other information that is similar to our relationship.
- dietary requirements (for example, when GEXAGI would like to provide you with meals and refreshments during meetings, visits);

- health (for example, so that we can make it easy for you to access our buildings, products and services);
- sexual orientation (for example, if you provide us with details of your spouse or partner); and
- Biometric details for entry into restricted facilities.

We may also process personal data relating to ethnic or racial origin (for example, any multicultural networks you belong to), or about your political opinions (inferred from information you give us about political associations you belong to or have donated to).

We will typically seek separate permission from you in writing to process these special categories of personal data.

If you choose not to provide, or object to us processing, the information we collect, we may not be able to process your instructions or continue to provide some or all of our services to you or our clients.

What lawful reasons do we have for processing personal data?

We may rely on the following lawful reasons when we collect and use personal data to operate our business and provide our products and services:

- **Contract** – We may process personal data in order to perform our contractual obligations.
- **Consent** - We may rely on your freely given consent at the time you provided your personal data to us.
- **Legitimate interests** – We may rely on legitimate interests based on our evaluation that the processing is fair, reasonable and balanced. These include:
 - Delivering services to our clients – To deliver the professional services our clients have engaged us to provide.
 - Direct marketing – To deliver timely market insights and specialty knowledge we believe is welcomed by our business clients, subscribers and individuals who have interacted with us.
- Legal obligations and public interests – We may process personal data in order to meet regulatory and public interest obligations or mandates.

What will GEXAGI do with your personal data?

GEXAGI will use the personal data:

- To provide services to our clients
- To meet legal or regulatory requirements
- Conduct due diligence checks relating to the services
- For other activities that form part of the operation of our business
- To manage and respond to any request you submit through our Website.

- Promoting our professional services, products and capabilities to existing and prospective business clients.
- Sending invitations and providing access to guests attending our events and webinars or our sponsored events.
- Personalising online landing pages and communications we think would be of interest based on interactions with us and group companies.
- Administering, maintaining and ensuring the security of our information systems, applications and websites.
- Authenticating registered users to certain areas of our sites.
- Detect, prevent, mitigate, and investigate fraudulent or illegal activities.

We are not selling the data that we collect on the website. It is only being used to respond to your query and for other marketing activities.

Whom do we share your personal data with?

In connection with any of the purposes outlined in the “**What will GEXAGI do with your personal data**” section above, we may disclose details about you to:

- other members of the GEXAGI group companies or third parties that provide services;
- competent authorities (including courts and authorities regulating us); our advisers, or your advisers;
- anyone to whom we may transfer our rights and/or obligations under the Terms;
- any other person or organisation after a restructure, sale or acquisition of any member of the GEXAGI group, as long as they use your information for the same purposes we did;
- credit reference agencies or other organisations that help us make credit decisions and reduce the incidence of fraud; and
- other third parties that reasonably require access to personal data relating to you.

Our Website hosts various blogs, forums, wikis and other social media applications or services that allow you to share content with other users (collectively “Social Media Applications”). Any personal data that you contribute to these Social Media Applications can be read, collected and used by other users of the application. We have little or no control over these other users, so any information you contribute to these Social Media Applications might not be handled in line with this privacy statement.

Where do we transfer your personal data?

Information we hold about you may be transferred to countries:
 where we do business;
 which are linked to your engagement with us;

from which you regularly receive or transmit information; or where our third parties conduct their activities.

These countries may have less stringent privacy laws than we do, so any information they hold can become subject to their laws and disclosure requirements, including disclosure to governmental bodies, regulatory agencies and private persons. In addition, a number of countries have agreements under which information is exchanged with other countries for law enforcement, tax and other purposes.

We may transfer your personal data when:

- You have consented to the transfer;
- Necessary for the performance of a contract with you or for pre-contractual steps taken at your request;
- Necessary for the establishment, exercise, or defence of legal claims;
- Necessary for the purposes of our legitimate interests, except where such interests are overridden by your interests or fundamental rights and freedom;
- Necessary to protect the vital interests of you or another person.

When we, or our permitted third parties, transfer your personal data outside the originated country or outside of your country of residence, we will impose contractual obligations on the recipients of that data to protect your personal data to the standard required in the applicable data protection laws. We will ensure that any international transfer of personal data is carried out in compliance with applicable data protection laws. If we transfer your personal data outside the originated country in other circumstances (for example, because we have to by law), we will make sure it remains adequately protected.

We may share non-personal, anonymised and aggregated information with third parties for several purposes, including data analytics, research, submissions, thought leadership and promotional activity.

How GEXAGI protects your personal data?

We use a range of measures to ensure we keep your personal data secure, accurate and up to date. These include but not limited to:

- education and training to relevant staff to ensure they are aware of our privacy obligations when handling personal data;
- administrative and technical controls to restrict access to personal data to a 'need to know' basis;
- technological security measures, including fire walls, encryption and anti-virus software;
- we may apply pseudonymisation, de-identification and anonymisation techniques in efforts to further protect personal data; and

- physical security measures, such as security passes to access our premises.

The transmission of data over the internet (including by e-mail) is never completely secure. So although we use appropriate measures to try to protect personal data, we cannot guarantee the security of data transmitted to us or by us.

What are your data protection rights?

Your data protection rights are highlighted here.

- **Access** – You can ask us to verify whether we are processing personal data about you, and if so, to provide more specific information.
- **Correction** – You can ask us to correct our records if you believe they contain incorrect or incomplete information about you.
- **Erasure** – You can ask us to erase (delete) your personal data after you withdraw your consent to processing or when we no longer need it for the purpose it was originally collected.
- **Processing restrictions** – You can ask us to temporarily restrict our processing of your personal data if you contest the accuracy of your personal data, prefer to restrict its use rather than having us erase it, or need us to preserve it for you to establish, exercise, or defend a legal claim. A temporary restriction may apply while verifying whether we have overriding legitimate grounds to process it. You can ask us to inform you before we lift that temporary processing restriction.
- **Data portability** – In some circumstances, where you have provided personal data to us, you can ask us to transmit that personal data (in a structured, commonly used, and machine-readable format) directly to another company if is technically feasible.
- **Automated Individual Decision-making** – You can ask us to review any decisions made about you which we made solely based on automated processing, including profiling, that produced legal effects concerning you or similarly significantly affected you.
- **Right to Object to Direct Marketing including Profiling** – You can object to our use of your personal data for direct marketing purposes, including profiling. We may need to keep some minimal information to comply with your request to cease marketing to you.
- **Right to Withdraw Consent** – You can withdraw your consent that you have previously given to one or more specified purposes to process your personal data. This will not affect the lawfulness of any processing carried out before you withdraw your consent. It may mean we are not able to provide certain products or services to you and we will advise you if this is the case.
- **Right of no Retaliation (non-discrimination)** - GEXAGI does not discriminate against you or take adverse action against you for exercising any of your (Data Subject) rights under the CCPA, CPRA, or any other data privacy law.
- **Transmissibility of Rights of the Data Subject** - In accordance with the Philippines - Data Privacy Act, GEXAGI shall assist the lawful heirs and assigns of the data subject to invoke the rights of the data subject at any time

after the death of the data subject or when the latter is incapacitated or incapable of exercising his or her rights.

We may need to request specific information from you to help us confirm your identity and ensure your right to access the information or to exercise any of your other rights. This helps us to ensure that personal data is not disclosed to any person who has no right to receive it. No fee is required to make a request unless your request is clearly unfounded or excessive. Depending on the circumstances, we may be unable to comply with your request based on other lawful grounds.

Do we use Cookies?

Our websites may use cookies. Where cookies are used, a statement will be sent to your browser explaining the use of cookies. To learn more, please refer to our cookie policy.

How long will GEXAGI retain your personal data?

We seek to ensure that we only keep your personal data for the longest of:

- the period necessary for the relevant activity or services;
- any retention period that is required by law; or
- the period in which litigation or investigations might arise in respect of the services.

Do we link to other websites?

Our websites may contain links to other sites that are not governed by this Privacy Statement. Please review the destination websites' privacy policies before submitting personal data on those sites. Whilst we try to link only to sites that share our high standards and respect for privacy, we are not responsible for the content, security, or privacy practices employed by other sites.

Choice

You have a choice about how GEXAGI should use your personal information to communicate with you, to send you marketing information, to provide you with customized and relevant advertising, and whether you want to stay signed into your account.

Communication Preferences

You can control the methods by which GEXAGI may contact you about your account. You can also control your member-to-member communications

preferences settings, and can choose which newsletters and promotions you want to receive.

Marketing

If you do not wish to receive marketing communications from GEXAGI, you can unsubscribe from the link in the email you received, change your communication preferences within GEXAGI, or indicate your communication preferences within the direct communication from us. Keep in mind, GEXAGI does not sell or rent your personal information to third parties for their marketing purposes without your explicit consent

Changes to this privacy statement:

From time to time we may update this statement. When we do, we will publish the changes on this Website. If you do not agree with these changes, you should discontinue your use of our Website. If material changes are made to this Statement, we will notify users by e-mail or by placing a prominent notice on this Website.

This Privacy Statement was last updated 31st January 2025

How to contact us

For any question, comment, complaint or wish to access a copy of your personal data or to correct it if you believe it is inaccurate, contact us at : info@GEXAGI.com

For USA/India-specific privacy concerns, queries, or requests: Info@GEXAGI.com.